BAP No. 25-000

UNITED STATES BANKRUPTCY APPELLATE PANEL OF THE TENTH CIRCUIT

IN RE EXAMPLE HOLDINGS, LLC,

Debtor.

JANE DOE,

Appellant,

v.

EXAMPLE TRUSTEE, *et al.*,

Appellees.

Bankr. No. 25-10000, Chapter 7

On Appeal from the United States Bankruptcy Court for the District of Example

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REPLY BRIEF OF APPELLANT JANE DOE

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ARGUMENT

I. THE APPELLEES DO NOT ANSWER THE VALUATION POINT

The Trustee's answering brief relies on the broker's rough estimate as though it were a finding. It is not. The question under 11 U.S.C. § 363(b) is whether the price reflected value, and the record contains no evidence of value other than the estimate the witness conceded he had not checked against the equipment.

II. THE PROCEEDS PROVISION IS A CONCESSION, NOT A REMEDY

The Trustee accepts that Appellant's interest must attach to the proceeds. That acknowledgment confirms that the order as written does not yet say so with the required precision. The Panel should direct the revision the Trustee's own brief describes.

CONCLUSION

Appellant renews her request that the Panel vacate the sale order and remand for findings on value.

Respectfully submitted,

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November 18, 2026

CERTIFICATE OF COMPLIANCE

1. This brief complies with the type-volume limitation of Fed. R. Bankr. P. 8015(a)(7)(B) because, excluding the parts of the brief exempted by Fed. R. Bankr. P. 8015(g) and 10th Cir. BAP L.R. 8015-1(d), it contains no more than 6,500 words. The brief contains 129 words, as counted by the drafting software.

   ☒ this brief contains 129 words.

2. This brief complies with the typeface requirements of Fed. R. Bankr. P. 8015(a)(5) and 10th Cir. BAP L.R. 8015-1(b) because it has been prepared in a proportionally spaced typeface using Microsoft Word in 14-point Garamond roman type.

/s/ Pat Example
Attorney for Appellant Jane Doe
Dated: November 18, 2026

STATEMENT OF RELATED CASES

The filer knows of no related case pending before the United States Supreme Court, any United States Court of Appeals, any United States District Court, or the Bankruptcy Appellate Panel.